

26STCP01536 26STCP01536

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Case Number: 26STCP01536 Hearing Date: August 21, 2026 Dept: 509

Lauzon Paluch v. Mehrdad Sahafi

MOTION TO COMPEL ARBITRATION

MOVING PARTY: Plaintiff Lauzon Paluch, APLC

RESPONDING PARTY(S): None

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is an action to recover the non-payment of attorney's fees. Petitioner Lauzon Paluch, APLC (Petitioner) represented Mehrdad Sahafi (Respondent) in a prior family law matter. Petitioner alleges Respondent owes \$132,682.93 in past due fees and costs.

Petitioner now moves to compel the matter to arbitration. Respondent did not oppose.

TENTATIVE RULING:

Petitioner's Motion to Compel Arbitration is CONTINUED to October 21, 2027, at 8:30 a.m.

Petitioner to give notice.

DISCUSSION:

Motion to Compel Arbitration

Petitioner moves to compel this matter to arbitration. However, Petitioner has not demonstrated that service of this action has been properly effectuated.

Here, Respondent has never been personally served and there is no indication they have voluntarily appeared in this action. Thus, service should have been completed in the same manner as required for service of summons generally. (See Code of Civ. Pro. §415.10, et seq. [service on individuals]; §416.10 et seq. [service on entities].)

Here, Petitioner filed a proof of service by substitute service. (See 6/5/26 Proof of Substitute Service.) Code of Civil Procedure, section 415.20 sets forth provisions for substituted service on an individual when personal service cannot be effected. Broadly, subdivision (a) allows the process server to serve the individual at their office by leaving the papers with a suitable substitute person while analogously, subdivision (b) allows the process server to serve the individual at their residence by leaving the papers with a suitable substitute person. Subdivision (c) provides that, only if there is no “reasonably known” address at which the individual can be served, service may be effected at the individual’s private mailbox obtained through a commercial mail receiving agency (CMRA), so long as certain procedural requirements are fulfilled. However, Petitioner’s evidence does not indicate compliance with any substitute service provision. [FN 1]

As an initial matter, there is no declaration which indicates that 23823 Malibu Road, Suite 50-488, Malibu, California, 90265 is either Respondent’s residence, place of business or otherwise. At best, it can be assumed that service was attempted at a CMRA since “ALFREDO DORAN, CLERK AT CMRA (PERSON APPARENTLY IN CHARGE)” was served. (See Proof of Service at p. 1/3.) Indeed, a cursory internet search indicates that this address is either a UPS Store or a United States Postal Service post office box since both are located at the same address, 23823 Malibu Road. Therefore, it appears that Petitioner is attempting service upon a CMRA under Code of Civil Procedure, section 415.20(c), which reads:

[I]f the only address reasonably known for the person to be served is a private mailbox obtained through a commercial mail receiving agency, service of process may be effected on the first delivery attempt by leaving a copy of the summons and complaint with the commercial mail receiving agency in the manner described in subdivision (d) of Section 17538.5 of the Business and Professions Code.

(Code Civ. Pro, §415.20, subd. (c).)

Even assuming this mailing address is proper despite the concerns outlined above, Petitioner has not demonstrated that service was proper under subsection (c). First, there is no evidence to suggest that this address is the only address reasonably known for Respondent. Second, Business and Professions Code, section 17538.5, requires a CMRA, after receiving copies of the summons and complaint, to (1) place a notice or copy of the documents in the customer’s mailbox within 48 hours and (2) send all documents by first-class mail within 5 days to the customer’s last known address. (Bus. & Prof. Code § 17538.5, subd. (d)(1).) Thus, to prove that service under subdivision (c) was properly effected, Petitioner needed to present evidence showing that (1) two copies of the summons and complaint were left at the UPS Store, so that one might be placed in Respondent’s box and the other sent to her last known address on file with the UPS store, and (2) that the UPS Store indeed complied by placing such documents in the mailbox and sent the second copy by first-class mail within 5 days to Respondent’s last known address on file at the store. There is no evidence that two copies were provided or that any CMRA complied with its requirements under the Code.

Substitute service is a secondary method of service (Evartt v. Superior Court (1979) 89 Cal.App.3d 795, 799) and in order to obtain personal jurisdiction through any form of constructive service, there must be strict compliance with statutory requirements (Stamps v. Superior Court (1971) 14 Cal.App.3d 108, 110.) “To be constitutionally sound, the form of substituted service must be ‘reasonably calculated to give an interested party actual notice of the proceedings and an opportunity to be heard ... in order that the traditional notions of fair play and substantial justice implicit in due process are satisfied.’ [Citation.]” (Zirbes v. Stratton (1986) 187 Cal.App.3d 1407, 1416.) Even if the Respondent has actual notice of the pending motion, “[t]he obligation to serve a party with process is not coextensive with merely providing the party with notice of the proceeding. Even undisputed actual notice of a proceeding does not substitute for proper service of the petition or complaint. . . . [¶] ‘Actual notice of the action alone . . . is not a substitute for proper service and is not sufficient to confer jurisdiction.’” (Abers v. Rohrs (2013) 217 Cal.App.4th 1199, 1206-1207, quoting American Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 392.)

Here, Petitioner has only demonstrated that these documents were given to “ALFREDO DORAN, CLERK AT CMRA.” (Proof of Service at p. 1/3.) There is no evidence that this address was Respondent’s only known physical address nor evidence

that Petitioner complied with the procedures outlined in Section 415.20(c). In the end, such deficiencies demonstrate Petitioner has failed to comply with the statutory requirements for substitute service and has failed to provide notice reasonably calculated to give Respondent actual notice of the proceedings and an opportunity to be heard.

Accordingly, Petitioner's Motion to Compel Arbitration is CONTINUED to October 21, 2026, at 8:30 am to allow Petitioner to adequately serve Respondent.

IT IS SO ORDERED.

Dated: August 21, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - Of note, "usual mailing address" in subdivision (a) does not include a CMRA such as a UPS Store. If it does, two absurdities result. First, the statute would direct the serving party, after having left a copy of the papers at the UPS Store, to later mail another copy of the papers to the UPS Store. Subdivision (a) does not indicate what the UPS Store would then be directed to do with that second copy. This would constitute a failure of the parts of the statute to harmonize with one another. (See *Wells v. Marina City Properties* (1981) 29 Cal.3d 781, 788.) Second, if "usual mailing address" in subdivision (a) includes CMRAs, then the special provisions for CMRAs in subdivision (c) would be obliterated because a party could always take advantage of subdivision (a) at a CMRA without ever being subject to the specific procedural requirements of subdivision (c) and the Business and Professions Code provisions that are incorporated by reference therein.

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole